

Song Beverly Act.

As for *Clauson*, the Court found the plaintiff could plead punitive damages under the common law tort claim of invasion of privacy and simultaneously plead civil penalties under the statutory claim for unlawful wiretapping pursuant to Penal Code section 637.2, subdivision (a). The Court of Appeal did not find punitive damages could be pled under the statutory claim for unlawful wiretapping.

Therefore, the Court is unpersuaded that punitive damages can be brought simultaneously with Plaintiffs' causes of action under the Song Beverly Act. In the event Plaintiffs' cause of action for fraudulent concealment is successfully pled in the future, they may bring a claim for punitive damages under that cause of action, but not under the Song Beverly Act.

Accordingly, GM's motion to strike punitive damages is GRANTED WITHOUT LEAVE TO AMEND as to the first through the fourth causes of action, and WITH LEAVE TO AMEND as to fifth cause of action.

LINE 3

MOSHE DAN ANCONINA, an individual,

Plaintiff,

v.

DIANA ROMANOV, formerly known as DIANA
ROMANOVSKA, individually and ROMANOV LAW,

Defendants.

Case No. 25CV470386

**ORDER GRANTING PLAINTIFF'S MOTION TO
STRIKE DEFENDANTS' ANSWER WITH LEAVE
TO AMEND & DENYING REQUEST FOR SANCTIONS**

Plaintiff's motion to strike Defendants' answer and affirmative defenses came on for hearing before the Court on February 19, 2026. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling on February 18, 2026.

I. Alleged Facts

From August 2022 through July 2024, Defendant Diana Romanov represented Plaintiff in a family law matter before the Santa Clara County Superior Court. During this time, Plaintiff paid Ms.

Romanov approximately \$140,000.00 in legal fees. Facing financial difficulties, Plaintiff could not pay the additional \$35,000.00 trial retainer that was requested.

On July 24, 2024, approximately two and half months before trial, Ms. Romanov filed a substitution of attorney. Plaintiff was then forced to retain a lower-cost substitute attorney, who had no trial experience and inadequate time to prepare for the trial. Subsequently, the family court issued a three-year restraining order against Plaintiff resulting in substantial loss of his parental rights.

Ms. Romanov failed to renew a previously issued Domestic Violence Restraining Order that protected Plaintiff, object to a defective child support order, challenge unlawful service by the Department of Child Support Services, and assert available defenses. These omissions resulted in suspension of Plaintiff's contractor license, a \$500.00 bank levy, and reputation of an "absent parent."

Plaintiff initiated this action on July 11, 2025, alleging causes of action for (1) legal malpractice, (2) breach of fiduciary duty, (3) intentional infliction of emotional distress, and (4) constructive fraud.

II. Legal Standards

Pursuant to Code of Civil Procedure, § 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529 [recognizing that an objection that the complaint failed to state facts sufficient to constitute a cause of action is ground for a general demurrer, not a motion to strike.]) Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) The allegations of a complaint "must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "read[s] allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume[s] their truth." (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

III. Analysis

A motion to strike an answer must be filed within 10 days after service of the answer (Code. Civ. Proc. § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b); Code Civ. Proc., § 430.40, subd. (b) [“A party who has filed a complaint ... may, within 10 days after service of the answer to his pleading, demur to the answer.”].)

Defendants’ answer was served on September 5, 2025, but mistakeably was not submitted to the court until September 23, 2025. Without requesting an extension of time, Plaintiff filed his original motion to strike the answer on October 30, 2025. Once the motion was rejected for failure to reserve a hearing date, Plaintiff refiled her motion on November 10, 2025. Plaintiff’s deadline to file his motion was, at the latest, 10 days from September 23, 2025, i.e. October 3, 2025. Even considering Plaintiff’s original filing date, the motion is still too late. Nonetheless, the Court at its discretion addresses the merits of the motion since Defendants have not objected to its untimely filing and instead have addressed Plaintiff’s substantive arguments in their timely opposition.

Plaintiff contends Defendants’ answer should be stricken because (1) it was filed five days late and while Plaintiff’s request for default was under review, (2) its affirmative defenses are boilerplate and fail to state facts constituting the defense, (3) it fails to specifically deny each allegations of the verified complaint, and (4) its tardy filing delayed resolution, increased costs and deprived Plaintiff of his statutory right to have a default entered pursuant to Code. Civ. Proc. § 585. Plaintiff adds that Defendants have been aware of this lawsuit since July of 2025 and their untimely and bad faith answers warrants sanctions under Code. Civ. Proc. §§ 128.5, and 128.7.

In opposition, Defendants contend (1) there is no definitive deadline for filing their answer due to the improper service of process, (2) their answer was filed five days after Plaintiff’s purported deadline due to the error of the contracted filing vendor, (3) specific denial of the allegations was not required since, in violation of California Rules of Court, rule 2.111, the first page of the complaint fails to identify it is verified and whether it is of limited or unlimited jurisdiction, (4) the allegations of the complaint are too unspecific and disorganized to allow specific denial, (5) their affirmative defenses need not be accompanied by specific facts since discovery has not been performed, and (6) mistake and neglect of the filing vendor is not equivalent to a sanctionable frivolous conduct committed by

Defendants intending to cause delay.

First, irrespective of irregularities in the service of process, Defendants' answer constitutes a general appearance. Nonetheless, the irregularities and/or improper service of process can undermine Plaintiff's position that the definitive deadline to file answers was September 18, 2025. "Even if the time to answer had expired, a trial court has discretion to decide whether to strike a late-filed answer." (*Imagistics Internat., Inc. v. Dep't of Gen. Servs.* (2007) 150 Cal.App.4th 581, 588.)

Defendants provide declaration of Alexis McNichols, First Legal's eFiling manager, attesting that Defendants' answer was received on September 4, 2025, for same day filing. On September 8, 2025, First Legal incorrectly informed Defendants' attorney that the filing was pending the court's review even though the answer was not submitted to the court until September 23, 2025, due to an inadvertent error of her eFiling Specialist.

Defendants also submit declaration of their attorney, David McMonigle, attesting that on September 5, 2025, Plaintiff was mail-served with a copy of their answer after he failed to address Defendants' concerns about service of process and their proposal to effectuate service by executing a notice of acknowledgement.

Considering the submitted declarations, Defendants' active participation in the action, and lack of prejudice shown by Plaintiff, the Court finds the purported late filing of the answer excusable. (See, *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

Second, Defendants' alleged failure to state facts sufficient to constitute a defense is a ground for demurrer and not a motion to strike their answer. However, their failure to file a verified answer to a verified complaint is subject to a motion to strike. (Code Civ. Proc. § 430.20.) Additionally, in response to a verified complaint, a defendant must also specifically deny the allegations. (Code Civ. Proc., § 431.30, subd. (d).) Here, Defendants' answer is not only unverified but also fails to specifically deny Plaintiff's allegations. Defendants' explanations and justifications for their non-conforming answer are unpersuasive.

California Rules of Court, rule 2.111 states, in pertinent parts:

"(6) Below the number of the case, the nature of the paper and, on all complaints and petitions, the

character of the action or proceeding. In a case having multiple parties, any answer, response, or opposition must specifically identify the complaining, propounding, or moving party and the complaint, motion, or other matter being answered or opposed...

(9) On the complaint, petition, or application filed in a limited civil case, below the character of the action or proceeding, the amount demanded in the complaint, petition, or application, stated as follows: "Amount demanded exceeds \$10,000" or "Amount demanded does not exceed \$10,000," as required by Government Code section 70613.

(10) In the caption of every pleading and every other paper filed in a limited civil case, the words "Limited Civil Case," as required by Code of Civil Procedure section 422.30 (b)."
(California Rules of Court, rule 2.111(6), (9), (10).)

Moreover, Code. Civ. Proc. § 422.30, subdivision (b) provides: "In a limited civil case, the caption shall state that the case is a limited civil case, and the clerk shall classify the case accordingly." The Code and the Rules of Court require parties to explicitly indicate that a case is limited jurisdiction. As a practical matter, this means that a civil case is classified as unlimited by default since extra requirements must be satisfied to render a case limited.

Regardless of the omitted first-page designations, a full review of the complaint establishes it is verified and unlimited jurisdiction since Plaintiff attaches his verification and prays for general damages in an amount not less than \$1,250,000.00. As such, Defendants were required to file a verified answer specifically denying Plaintiff's allegations. Paragraphs 2-17 of the complaint provide a list of Defendants' alleged wrongdoings that form the basis of Plaintiff's claims. These allegations are definite enough to allow Defendants' to specifically deny their wrongdoings and/or the claims.

Third, while the Court finds that Defendants' unverified answer is subject to strike, it does not find their conduct is subject to sanctions, contrary to Plaintiff's argument. Code of Civil Procedure permits the court to sanction attorneys or parties for engaging in bad faith actions or tactics or for filing documents with the court for an improper purpose. (See Code Civ. Proc, §§ 128.5 and 128.7.) The decision as to whether sanctions should be imposed under section 128.5 or 128.7 is within the court's discretion. (*Brubaker v. Strum* (2023) 87 Cal.App.5th 497, 511 [under section 128.5]; *Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1120-1121 [under section 128.7].) As a prerequisite to the imposition

of sanctions under §128.5 or §128.7, the moving party must comply with a 21-day safe harbor. This requires service of a copy of the motion 21 days before it is filed, to afford the opposing party the opportunity to correct the issue. (Code Civ. Proc, §§ 128.5, subd. (f)(1)(B); 128.7, subd. (c)(1).) The safe harbor notice provisions must be strictly complied with. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) Here, not only did Plaintiff not comply with the safe harbor provisions, but also the circumstances leading to the alleged late filing of the answer do not tantamount to bad faith conduct.

Finally, Plaintiff attributes certain quotes to published cases that do not appear in those cases and some of the cases he cites do not discuss the topics for which they are cited. “[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (*Noland v. Land of the Free, L.P.* 114 Cal.App.5th 426, 431.) The Court notes Plaintiff is self-represented. Nonetheless, self-represented litigants are held to the same standards and considerations as attorneys and other litigants. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) The Court admonishes Plaintiff and cautions him that any future reference to and/or use of fake legal authority will subject him to monetary sanctions.

The Court finds it unnecessary to further analyze and address the parties’ remaining arguments. Based on the foregoing, Plaintiff’s motion to strike Defendants’ answer is GRANTED WITH LEAVE TO AMEND but his request for sanctions is DENIED.

LINE 4

Calendar Line 4

Case Name: *Dee Morgan v. The Terraces of Los Altos Senior Living, et al.*

Case No.: 25CV472651

Before the Court is Plaintiff Dee Morgan’s (“Plaintiff”) motion to strike portions of the Answer to the